

25STCV36391 25STCV36391

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-08-27
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Case Number: 25STCV36391 Hearing Date: August 27, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

FADY BEBAWY YAKOUB,

Plaintiff,

vs.

CITIGUARD, INC.,

Defendant.

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CASE NO.: 25STCV36391

[TENTATIVE] ORDER CONTINUING MOTION TO COMPEL
ARBITRATION

Dept. 506

8:30 a.m.

August 27, 2026

On December 15, 2025, Plaintiff Fady Bebawy Yakoub filed
this action against Defendant Citiguard, Inc.

On March 25, 2026, Defendant filed a motion
to compel arbitration.

When seeking to compel arbitration
of a plaintiff's claims, the defendant must allege the existence of an agreement
to arbitrate. (Condee v. Longwood Management
Corp. (2001) 88 Cal.App.4th 215, 219.)
The burden then shifts to the plaintiff to prove the falsity of the agreement. (Ibid.) After the Court determines that an
agreement to
arbitrate exists, it then considers objections to its enforceability. (Ibid.)

There is a preliminary dispute
about whether the signature on the Arbitration Agreement is in fact Plaintiff's
signature. Defendant authenticates the Arbitration
Agreement through the declaration of its CEO and Custodian of Records, who was not

present during Plaintiff's interview or signing of onboarding documents. (Nomair Decl. ¶ 3; Yakoub Decl. ¶ 5.) Plaintiff contends that the handwriting and signature on the Arbitration Agreement are not his, and he never received a copy of the Arbitration Agreement. (Yakoub Decl. ¶¶ 7-8.)

The signatures on the Arbitration Agreement and Plaintiff's declaration are vastly different. The Court has compared the signatures and agrees that there is a plausible factual question about whether the Arbitration Agreement's signature is really Plaintiff's signature.

Rather than summarily deny the motion, the Court will continue the hearing and allow additional evidence.

The Hearing on Motion to Compel Arbitration is continued to _____.

All discovery other than discovery related to the authenticity of Plaintiff's signature is STAYED.

At the hearing, the Court invites the parties to suggest how much time they will need to conduct discovery and submit supplemental briefing.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 27th day of August 2026

Hon. Thomas D. Long

Judge of the Superior
Court